

Court No. - 3

Case :- WRIT - C No. - 32501 of 2022

Petitioner :- Ishtkar Ali

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prabhat Chandra Mishra

Counsel for Respondent :- C.S.C.,Alok Mishra,Krishna Agarawal

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Anish Kumar Gupta,J.

Heard Sri Prabhat Chandra Mishra, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Kushal Agarwal holding brief of Shri Krishna Agarwal, learned counsel for the respondent Nos.2, 3 and 4.

Learned counsel for the respondent nos.2, 3 and 4 has raised a preliminary objection as to maintainability of the writ petition on the ground that the petitioner has a remedy under **Para 6.5 of U.P. Electricity Supply Code, 2005** to raise all disputes regarding the Electricity Bill or for its correction.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his objection under **Para 6.5 of U.P. Electricity Supply Code, 2005** before the respondent No. 4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

It is made clear that we have not expressed any opinion on the merits of the case of the petitioner.

Order Date :- 7.2.2023

SFH